

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 6.08.030, ANIMALS RUNNING AT LARGE PROHIBITED, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 6.08.030, Animals Running at Large Prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming, is amended as follows:

6.08.030 Animals running at large prohibited.

Except as provided by sub-sections C., and D., of this section, ~~T~~the owner of an animal must keep the animal under restraint at all times, not permitting it to run at large except on the owner’s property. The owner of an animal found to be at large shall be responsible for any violation of this section. Upon conviction, the owner of any animal that is:

A. Altered or less than six months of age may be punished as follows:

1. First offense: a fifty dollar (\$50.00) fine;
2. Second offense, within a twelve (12) month period: a seventy-five dollar (\$75.00) fine. **and A second offense will result in the mandatory microchipping and identification of the animal at the expense of the owner.** Upon a second offense, the owner of the animal shall bear the burden of proof and cost regarding the animal’s alteration and microchipping. Within ten (10) calendar days of redemption, the owner shall provide proof **to the Municipal Court** of alteration and microchipping identification ~~either by through~~ certification ~~from by~~ a veterinarian; ~~or the owner may have the animal inspected or scanned at by~~ animal control;
3. Third and subsequent offenses, within a twelve (12) month period: mandatory ~~court~~ appearance **in Municipal Court**, not less than a one hundred dollar (\$100.00) fine and up to a seven hundred fifty dollar (\$750.00) fine.

B. Unaltered **and more than six (6) months of age** may be punished as follows:

1. First offense: a seventy-five dollar (\$75.00) fine;
2. Second offense, within a twelve (12) month period: a one hundred dollar (\$100.00) fine. A second offense will result in the mandatory altering and microchipping of the animal **at the expense of the owner.** Upon a second offense, the owner of the animal shall bear the burden of proof and cost regarding the animal’s alteration and microchipping. Within ten (10) calendar days of redemption, the owner shall provide proof **to the Municipal Court** of alteration and microchipping identification ~~either by through~~ certification ~~from by~~ a veterinarian; ~~or the owner may have the animal inspected or scanned at by~~ animal control;
3. Third and subsequent offenses, within a twelve (12) month period: mandatory ~~court~~ appearance **in Municipal Court**, not less than a one hundred dollar (\$100.00) fine and up to a seven hundred fifty dollar (\$750.00) fine.

C. This Section shall not apply to trained goose control dogs under the direction and control of City employees or contractors in the performance of official goose control operations or to police service dogs engaged in the line of duty.

D. Service animals as defined pursuant to the Americans with Disabilities Act must be harnessed, leashed, or tethered, unless these devices interfere with the service animal's work or the individual's disability prevents using these devices. In that case, the individual must maintain control of the animal through voice, signal, or other effective controls.

Section 2. This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle